

Hollowell Patent Group PLLC

www.hollowellpatent.com

August 1, 2021

Joseph Palmer
General Manager
Keith-Duarte

Dear Mr. Palmer:

This letter sets out the terms on which we will represent Keith-Duarte in patent prosecution support for the Keith-Duarte portfolio. Please read it in full before you sign it. If a term here does not match your understanding of what we discussed, mark it and send it back marked. I would rather revise a letter than argue about one.

Scope of the Engagement

We will act as counsel of record for the applications in the families you identify to us in writing, and for the prosecution work those families generate before the United States Patent and Trademark Office. The work includes intake and review of the transferred files, docketing of every date those files carry, preparation and filing of responses to office actions and to restriction and election requirements, information disclosure statements and the related formalities, and counsel on continuation, divisional, and abandonment decisions as they arise.

The engagement does not include litigation or contested post-grant proceedings, foreign filing beyond instructions to associates you have already engaged, opinions of counsel on infringement or validity, or freedom-to-operate analysis. Each of those is a separate undertaking and takes a separate letter. Scope is what this section says it is, not what the subject matter suggests. If you need something that is not here, ask, and we will amend.

Approach

Every matter is docketed on intake and confirmed back to you in writing, with the dates we calculated and the papers we calculated them from. Where a deadline can be extended, we will give you the unextended date, the extended date, and the cost of the extension before the earlier one passes. We will not let an unextended date go by on the assumption that an extension will be purchased later. If a file arrives incomplete, we docket to the papers we have and tell you the same week what is missing.

You will have our conclusions in writing. Views offered on a call about how a family looks are working discussion, are not an opinion, and should not be relied on or repeated as one. That is

not caution for its own sake. A characterization of scope or validity that travels outside a written analysis is a document we never got the chance to qualify.

The Team

Heather Munoz, Partner, has overall responsibility for the engagement and is your principal contact. Kelly Snyder, Associate, will take the file histories and the prior-art review; if you receive a question about a sentence an examiner wrote years ago, it will come from her, and it will be worth answering. Joseph Walker, Associate, carries the running docket and the correspondence and will be the name on most of what reaches you. I supervise the engagement and sign anything that commits the firm.

Staffing may change as the work requires. Heather Munoz will tell you before it does, and no one will appear on your matters without her knowing why.

Fees and Payment

Our fee for the work described above is \$39,500, and the engagement begins August 11, 2021. Official fees, search costs, and foreign associate charges are billed as incurred and are not covered by that figure. We invoice monthly, and invoices are payable within thirty days of presentation. If you dispute a charge, tell us inside that period and we will hold it out of the balance until it is resolved.

If an invoice goes unpaid, we will tell you once, plainly. If it stays unpaid, we will stop new work and move to withdraw, subject to our obligations to the Office and to you on any matter with a date pending. Withdrawal does not forgive fees earned or costs advanced before it. I put this in the letter rather than into a later conversation, because the later conversation is worse.

Term and Termination

The engagement runs from the start date stated above until the work described is complete, unless one of us ends it sooner. You may end it at any time, for any reason, on written notice. We may end it for non-payment, for a conflict that develops and cannot be waived, or where continuing would require us to act against our professional obligations. On termination we return the files and deliver a docket of every open date, and we state in writing the date on which responsibility for those dates passes to you or to successor counsel. There will be no interval in which each of us assumes the other is watching.

Confidentiality

What you tell us in the course of the representation is confidential, and communications made for the purpose of legal advice are privileged. We will not disclose your information without your consent except where a rule, an order, or our duty of candor to the Office requires it, and where

that happens we will tell you what was disclosed and why. Technical disclosures from your engineers are treated the same way. The privilege is yours, not ours. We will not waive it for you, and we will flag anything that puts it at risk.

Conflicts

We have run this matter against our current and former clients and have identified no conflict. We are a boutique and our clients work in overlapping fields, so a conflict may develop later. If one does, we will tell you as soon as we know, and we will not take a position adverse to you in the subject matter of this engagement. Whether we can continue in that circumstance may depend on a waiver we ask you for in writing, and you are free to decline it.

Limitation of Liability

Our aggregate liability arising out of this engagement is limited to the fees paid to us under it, except where such a limit cannot be imposed under the rules of professional conduct or applicable law. Nothing here limits liability for fraud or willful misconduct, waives any right you have to raise a matter with a disciplinary authority, or relieves us of the obligation to tell you when we have made an error. We carry professional liability insurance and will furnish the certificate on request. You should know that this paragraph is a term you are free to negotiate. Some clients do.

Governing Law

This letter is governed by the law of the state in which our office sits and by the rules of professional conduct in force there. Practice before the Office is additionally governed by the applicable federal statutes and regulations, and where those conflict with this letter, they control. Any dispute under this letter will be brought in the courts of that state, and each of us bears its own costs unless a court orders otherwise.

If the foregoing states our agreement, please sign in the space below and return one copy to me. We will not open a matter or docket a date under this letter until the signed copy is back, and until the dates are docketed they are yours to watch rather than ours. That is the only urgency in this letter, and it is a real one. We are glad to be doing this work for Keith-Duarte, and we will do it precisely.

Mary Bradley

Managing Partner

Date: August 1, 2021

Joseph Palmer

General Manager, Keith-Duarte

Date: August 1, 2021